



**123 IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

CRM-M-65061-2024
Date of decision: 07.01.2025

M/s Classic Lightning Industry and anotherPetitioners

Versus

State of Punjab and another ...Respondents

CORAM: HON'BLE MR. JUSTICE HARPREET SINGH BRAR

Present: Mr. Raj Kumar Rana, Advocate
for the petitioners.

Mr. Subhash Godara, Addl.A.G., Punjab.

HARPREET SINGH BRAR, J. (ORAL)

1. The present petition has been filed under Section 528 of Bharatiya Nagarik Suraksha Sanhita, 2023 seeking quashing of impugned order dated 12.06.2024 passed by the learned Additional Sessions Judge, SAS Nagar (Annexure P-5) vide which petitioner No.1 is directed to deposit 20% of the amount of compensation awarded by the learned trial Court i.e. 20% of Rs.4 lakh within 60 days from the date of order.

2. Brief facts of the case are that a complaint was filed by respondent No.2 against the petitioners under Sections 138 of the Negotiable Instruments Act, 1881 (for short 'the Act') on the ground of dishonouring of cheque bearing No.017790 dated 03.09.2019 amounting to Rs.2,52,806/- issued in favour of the complainant/respondent No.2 by petitioner No.2 in discharge of his liability. Respondent No.2 filed complaint against petitioner No.2 in which vide order dated 29.05.2024, he was sentenced to undergo rigorous imprisonment for a period of one year and was further directed to pay compensation to the tune of



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Rs.4 lakh within one month from the date of order. Thereafter, petitioner No.2 preferred an appeal against the said judgment of conviction and order of sentence before the learned Additional Sessions Judge, SAS Nagar. The learned Appellate Court vide order dated 12.06.2024, suspended the sentence of petitioner No.2 subject to depositing 20% of the compensation amount.

3. Learned counsel for the petitioners *inter alia* contends that the learned lower Appellate Court failed to appreciate the facts in the right perspective and imposed the condition to deposit 20% of the compensation and such a condition is illegal, arbitrary and in violation of the law as laid down by the Hon'ble Supreme Court in Criminal Appeal Nos.2741 of 2023 (@ SLP(Crl.) Nos. 4927 of 2023 ***Jamboo Bhandari vs. M.P. State Industrial Development Corporation Ltd. and others***, decided on 04.09.2023. Speaking through Justice Abhay S. Oka, it has been held as follows:-

“6. What is held by this Court is that a purposive interpretation should be made of Section 148 of the N.I. Act. Hence, normally, Appellate Court will be justified in imposing the condition of deposit as provided in Section 148. However, in a case where the Appellate Court is satisfied that the condition of deposit of 20% will be unjust or imposing such a condition will amount to deprivation of the right of appeal of the appellant, exception can be made for the reasons specifically recorded.

7. Therefore, when Appellate Court considers the prayer under Section 389 of the Cr.P.C. of an accused who has been convicted for offence under Section 138 of the N.I. Act, it is always open for the Appellate Court to consider whether it is an exceptional case which warrants grant of suspension of sentence without imposing the condition of deposit of 20% of the fine/compensation amount. As stated earlier, if the Appellate Court comes to the conclusion that it is an exceptional case, the reasons for coming to the said 4 conclusion must be recorded.”



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4. Having heard learned counsel for the petitioners and after perusing the judgment passed in *Jamboo Bhandari (supra)*, the lower Appellate Court was required to consider whether the present case falls in the exception or not. The impugned order dated 12.06.2024 (Annexure P-5), whereby, the condition of depositing 20% of compensation amount awarded has been imposed for granting suspension of sentence, is hereby set aside. The learned lower Appellate Court is directed to re-examine the case after granting an opportunity to the petitioners to make submissions regarding the exceptional circumstances and decide whether it is an appropriate case that warrants waiver of the requirement of deposit of 20% of the compensation awarded by learned trial Court.

5. The matter is remanded back to the learned lower Appellate Court with a direction to decide the matter afresh in accordance with law in the light of judgment passed by the Hon'ble Supreme Court in *Jamboo Bhandari's case (supra)*.

6. The petition is disposed of accordingly.

(HARPREET SINGH BRAR)
JUDGE

07.01.2025

Neha

Whether speaking/reasoned	:	Yes/No
Whether reportable	:	Yes/No